

25STCP04568 25STCP04568

County: los-angeles

Division: Civil Law and Motion

Department: 833

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Case Number: 25STCP04568 Hearing Date: September 18, 2026 Dept: 833

Alex G. Romain, Case No. 25STCP04568

Hearing:

September 18, 2026

v. Location:

Stanley Mosk Courthouse

Department:

833

Harvard Westlake School Judge: Joseph

Lipner

Order Regarding Motion

to Quash Deposition Subpoena

INTRODUCTION

Respondent

Harvard-Westlake School ("Respondent") seeks an order staying and quashing the June 15, 2026 Deposition Subpoena for Production of Business Records ("Tyson Subpoena") served by Petitioner Alex G. Romain ("Petitioner") on Tyson & Mendes LLP ("Tyson & Mendes"). Respondent also moves for a protective order precluding Petitioner from attempting to take any discovery from Tyson without first obtaining leave of court. Respondent also moves for an order imposing monetary attorneys fees against Petitioner in the amount of \$5,977 on the grounds that the Tyson Subpoena was oppressive and/or Petitioner opposed this motion without substantial justification.

The Court GRANTS

the motion to quash the deposition subpoena. The Court DENIES any request for a protective order and grants the request for attorneys fees in a reduced amount of \$3,003.00.

BACKGROUND FACTS

On June 15, 2026, a subpoena for production of business records was issued. (Bordin-Wosk Decl., Exh. 1 at p. 1.) Petitioner served the subpoena on the Custodian of Business Records for Tyson & Mendes LLP. (Bordin-Wosk Decl., Exh. 1 at p. 1.) Tyson & Mendes is former counsel of record for Harvard-Westlake in this matter. (Bordin-Wosk Decl., ¶ 3 & Exh. 7 at ¶ 1.)

In the Tyson Subpoena, Petitioner requests (1) communications between Tyson & Mendes and Lucca V. relating to the juvenile proceeding; and (2) communications between Tyson & Mendes and Lucca V. related to Lucca V.'s alleged sexual or racial misconduct. (Bordin-Wosk Decl., Exh. 1 at p. 4.)

LEGAL STANDARD

“Depositions of opposing counsel are presumptively improper, severely restricted, and require ‘extremely good cause’—a high standard. [Citations.] There are strong policy considerations against deposing an opposing counsel. The practice runs counter to the adversarial process and to the state’s public policy to ‘[p]revent attorneys from taking undue advantage of their adversary’s industry and efforts.’ [Citation.]” (Carehouse Convalescent Hospital v. Superior Court (2006) 143 Cal.App.4th 1558, 1562.)

Attorney

depositions are considered disruptive and add to the length and expensive of litigation. (Id., at p. 1562.) “Attorney depositions chill the attorney-client relationship, impede civility and easily lend themselves to gamesmanship and abuse. ‘Counsel should be free to devote his or her time and efforts to preparing the client’s case without fear of being interrogated by his or her opponent.’” (Id., at p. 1563.)

To

determine whether an attorney deposition should go forward, California applies a three-prong test. “First, does the proponent have other practicable means to obtain the information? Second, is the information crucial to the preparation of the case? Third, is the information subject to a privilege?” (Id., at p. 1563.)

PROCEDURAL HISTORY

Harvard-Westlake
filed a Motion to Quash on July 1, 2026. Petitioner has not opposed the motion.

ANALYSIS

This
case involves the question of whether Harvard-Westlake has produced all pupil records pertaining to A.R. The requested documents are not related to the fundamental legal question in this case: has Harvard-Westlake produced all of A.R.’s pupil records and if not, what additional records must Harvard-Westlake produce to comply with its legal obligations?

There
has been no showing that communications relating to the juvenile proceeding involving Lucca V. and communications between Tyson & Mendes and Lucca V. may be A.R.’s pupil records. Moreover, if there are records of Lucca V., those records might be protected by a student’s right to privacy in their pupil records. (Rim of the World Unified School Dist. v. Superior Court (2002) 104 Cal.App.4th 1393, 1398; Porten v. University of San Francisco (1976) 64 Cal.App.3d 825, 832.) If Petitioner
did have a legal right to seek these records, he could seek them from Harvard-Westlake.

Petitioner
has not filed an opposition, so has not overcome the presumption that this request is presumptively improper.

In
its notice of motion, Harvard-Westlake requests a protective order as well. The Court declines to impose a protective order because there is no discussion of a protective order in the memorandum of points and authorities.

When

a party moves to quash a deposition subpoena, “the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney’s fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive.” (Code Civ. Proc., § 1987.2.) The Court “shall impose a monetary sanction...against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2025.420, subd. (h).)

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deposition of an opposing party’s attorney is an inherently burdensome tactic. (Carehouse Convalescent Hospital, supra, 143 Cal.App.4th at p. 1566.) Therefore, the Court determines sanctions are warranted.

Harvard-Westlake

seeks \$5,977 in sanctions. However, some of this amount is a result of an expectation of reviewing an opposition and preparing a reply, which did not occur for this motion. (See, e.g., Bordin-Wosk Decl., ¶ 12.) The Court therefore cuts \$1,000.00 from the time Yousefzadeh was expected to incur on this motion.

The

Court also cuts the amount of time that Partner Christopher Blanchard worked on this motion from 12.6 hours to 6 hours. It was unreasonable for Harvard-Westlake to have multiple attorneys conducting legal research and drafting a short and straightforward motion.

That

leaves the following:

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Yousefzadeh - \$250/hr at 2.5 hours

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Blanchard - \$290/hr at 6 hours

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Bordin-Wosk - \$290/ hr at 2.2 hours

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\$60 in costs

The lodestar for this attorneys fees motion is
\$3,003.00.

CONCLUSION

The Court GRANTS
the motion to quash the deposition subpoena. The Court DENIES any request for a
protective order and grants the request for attorneys fees in a reduced amount
of \$3,003.00. Petitioner shall pay this amount to Harvard-Westlake within 30
days.

IT IS SO ORDERED.

Dated: September
18, 2026

Joseph
Lipner

Superior
Court Judge